

See also: Plato's *Laws* 31 ■ Ulpian the Jurist 36–37 ■ The origins of canon law 42–47 ■ Gratian's *Decretum* 60–63 ■ Thomas Aquinas 72–73

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There really is,
as everyone senses,
something just by nature
and common to all.

Aristotle

Rhetoric (I.13), 4th century BCE

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However, Aristotle did not explain how to distinguish natural law from cultural beliefs. Even the example he gave of a natural law—the right to a burial—is not a universal custom. Many societies do not bury the dead, but leave their bodies for carrion birds, who pick the bones clean. It was left to later thinkers to find a rational basis for natural law.

Natural harmony

In c. 300 BCE, the Greek philosopher Zeno, the founder of Stoicism, identified natural law with divine reason, which he saw as a purposeful order pervading the cosmos. As part of this cosmos, humans have divine reason within them. By following only reason rather than emotion, people can live in harmony with natural law.

Because they believed that all human beings shared both divine reason and natural law, the Stoics saw humanity as a community in which all people were equal. The ideal society, in their view, was a world state in which everybody lived together in harmony, following the rule of divine reason.

Centuries later, some Roman jurists, including the renowned Ulpian, early in the 3rd century CE, accepted the Stoic idea that humans were equal in natural law and that slavery was contrary to nature. Yet they never went so far as to argue that this principle should be put into practice in civil law.

Divine reason

The Roman statesman Cicero was strongly influenced by the Stoics. In *De Republica* (c. 51 BCE), he urged that “True law is right reason in agreement with nature ... [with] one eternal and unchangeable law ... valid for all nations and all times, and ... one master and ruler, that is God over us all, for he is the author of this law, its promulgator, and its enforcing judge.” While Cicero took the Stoic view of “God” as divine reason, his words resonated with later Christian thinkers, including Gratian—an Italian monk—and Thomas Aquinas. They saw Cicero’s description of a universal lawmaker and judge as the Christian God. ■

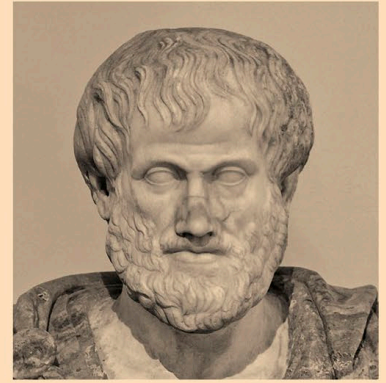
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So far as the civil law is
concerned, slaves are not
considered persons; but
this is not the case
according to natural law,
because natural law regards
all men as equal.

Ulpian the Jurist

Ad Sabinum (XLIII), c. 212 CE

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Aristotle

The writings of Aristotle—philosopher, scientist, and polymath—shaped the development of ancient and medieval philosophy. Born in 384 BCE at Stagira in Thrace, he went to Athens at the age of 17, where he studied and taught for 20 years at Plato’s Academy. After Plato’s death in c. 347 BCE, Aristotle traveled to Asia Minor. In c. 344 BCE, he visited the island of Lesbos in the Aegean, where he made a detailed study of maritime life.

Aristotle was tutor to Alexander the Great for a brief period, then returned to Athens in 335 BCE and founded his own school, the Lyceum. This included a library, a museum, and a map collection. He wrote around 200 books, covering every branch of science and philosophy then known. In 323 BCE, he moved to Chalcis, and died the following year.

Aristotle’s work endured in the Islamic world after the fall of Rome and was revived in the West by Thomas Aquinas.

Key works

Nicomachean Ethics
Rhetoric
Politics